

SUPREME COURT OF PAKISTAN

(Review Jurisdiction)

Present:

Justice Shahid Bilal Hassan
Justice Shakeel Ahmad

Civil Review Petitions No. 669 to 728 of 2025 in Civil Appeals No. 458 to 499, 517, 550 to 563 & 568 to 570 of 2025

(For review of the judgment dated 18.09.2025, passed by this Court, in C.As.458 to 499, 517, 550 to 563 & 568 to 570 of 2025)

Competition Commission of Pakistan, ...Petitioner(s)
through its Registrar *(in all cases)*

Versus

Mirpurkhas Sugar Mills Limited, Karachi
(in C.R.P.669/2025 IN C.A.458/2025)

Sindh Abadgar's Sugar Mills Limited,
Karachi
(in C.R.P.670/2025 IN C.A.459/2025)

SGM Sugar Mills Limited, Karachi
(in C.R.P.671/2025 IN C.A.460/2025)

Sakrand Sugar Mills Limited, Karachi
(in C.R.P.672/2025 IN C.A.461/2025)

Al - Abbas Sugar Mills Limited, Karachi
(in C.R.P.673/2025 IN C.A.462/2025)

Al Noor Sugar Mills Limited, Karachi
(in C.R.P.674/2025 IN C.A.463/2025)

Army Welfare Sugar Mills Limited, Karachi
(in C.R.P.675/2025 IN C.A.464/2025)

Digri Sugar Mills Limited, Karachi
(in C.R.P.676/2025 IN C.A.465/2025)

Faran Sugar Mills Limited, Karachi
(in C.R.P.677/2025 IN C.A.466/2025)

Habib Sugar Mills Limited, Karachi
(in C.R.P.678/2025 IN C.A.467/2025)

Khairpur Sugar Mills Limited, Karachi
(in C.R.P.679/2025 IN C.A.468/2025)

Matari Sugar Mills Limited, Karachi
(in C.R.P.680/2025 IN C.A.469/2025)

Ranipur Sugar Mills Limited, Karachi
(in C.R.P.681/2025 IN C.A.470/2025)

Sanghar Sugar Mills Limited, Karachi
(in C.R.P.682/2025 IN C.A.471/2025)

Shahmurad Sugar Mills Limited, Karachi
(in C.R.P.683/2025 IN C.A.472/2025)

New Dadu Sugar Mills Limited, Karachi
(in C.R.P.684/2025 IN C.A.473/2025)

Ansari Sugar Mills Limited, Hyderabad
(in C.R.P.685/2025 IN C.A.474/2025)

Khoski Sugar Mills Limited, Karachi
(in C.R.P.686/2025 IN C.A.475/2025)

Naudero Sugar Mills Limited, Karachi
(in C.R.P.687/2025 IN C.A.476/2025)

Larr Sugar Mills Limited, Karachi

(in C.R.P.688/2025 IN C.A.477/2025)

Mehran Sugar Mills Limited, Karachi
(in C.R.P.689/2025 IN C.A.478/2025)

Bawany Sugar Mills Limited, Karachi
(in C.R.P.690/2025 IN C.A.479/2025)

JDW Sugar Mills Limited (Unit-1), Lahore
(in C.R.P.691/2025 IN C.A.480/2025)

Ashraf Sugar Mills Limited, Lahore
(in C.R.P.692/2025 IN C.A.481/2025)

Etihad Sugar Mills Limited, Lahore
(in C.R.P.693/2025 IN C.A.482/2025)

Pakistan Sugar Mills Association (PSMA),
Islamabad *(in C.R.P.694/2025 IN C.A.483/2025)*

JDW Sugar Mills Limited (Unit-II), Lahore
(in C.R.P.695/2025 IN C.A.484/2025)

JDW Sugar Mills Limited (Unit-III), Lahore
(in C.R.P.696/2025 IN C.A.485/2025)

RYK Mills Limited, Lahore
(in C.R.P.697/2025 IN C.A.486/2025)

Indus Sugar Mills Limited, Lahore
(in C.R.P.698/2025 IN C.A.487/2025)

Sheikhoo Sugar Mills Limited, Lahore
(in C.R.P.699/2025 IN C.A.488/2025)

The Thal Industries Corporation Limited
(Safina Sugar Mills), Lahore *(in C.R.P.700/2025
IN C.A.489/2025)*

Noon Sugar Mills Limited, Lahore
(in C.R.P.701/2025 IN C.A.490/2025)

Al Moiz Industries Limited (Unit-1), Lahore
(in C.R.P.702/2025 IN C.A.491/2025)

Al Moiz Industries Limited (Unit-II)
(in C.R.P.703/2025 IN C.A.492/2025)

The Thal Industries Corporation Limited
(Layyah Sugar Mills), Lahore *(in
C.R.P.704/2025 IN C.A.493/2025)*

Baba Farid Sugar Mills Limited, Lahore
(in C.R.P.705/2025 IN C.A.494/2025)

Deharki Sugar Mills Pvt Limited, Lahore
(in C.R.P.706/2025 IN C.A.495/2025)

JK Sugar Mills Pvt Limited, Lahore
(in C.R.P.707/2025 IN C.A.496/2025)

Adam Sugar Mills Limited, Karachi
(in C.R.P.708/2025 IN C.A.497/2025)

Chanar Sugar Mills Limited
(in C.R.P.709/2025 IN C.A.498/2025)

Hamza Sugar Mills Limited, Karachi
(in C.R.P.710/2025 IN C.A.499/2025)

Fatima Sugar Mills Limited, Lahore
(in C.R.P.711/2025 IN C.A.517/2025)

Ittefaq Sugar Mills Limited, Lahore, through
its Director (*in C.R.P.712/2025 IN C.A.550/2025*)

Kashmir Sugar Mills Limited, Lahore,
through its Director (*in C.R.P.713/2025 IN
C.A.551/2025*)

Tandlianwala Sugar Mills Limited, Lahore
(*in C.R.P.714/2025 IN C.A.552/2025*)

Jauharabad Sugar Mills Limited, Lahore
(*in C.R.P.715/2025 IN C.A.553/2025*)

M/s S.W. Sugar Mills Limited, Lahore
(*in C.R.P.716/2025 IN C.A.554/2025*)

M/s Hunza Sugar Mills (Pvt.) Limited, Unit-I,
Lahore (*in C.R.P.717/2025 IN C.A.555/2025*)

M/s Hunza Sugar Mills (Pvt.) Limited, Unit-
II, Lahore (*in C.R.P.718/2025 IN C.A.556/2025*)

Tariq Corporation Limited (formerly Husein
Sugar Mills Limited), Lahore
(*in C.R.P.719/2025 IN C.A.557/2025*)

Shakarganj Limited (Unit-I), Lahore
(*in C.R.P.720/2025 IN C.A.558/2025*)

Shakarganj Limited (Unit-II), Lahore
(*in C.R.P.721/2025 IN C.A.559/2025*)

Imperial Limited (Formerly Imperial Sugar
Limited), Lahore (*in C.R.P.722/2025 IN
C.A.560/2025*)

Abdullah Shah Ghazi Sugar Mills Limited,
Karachi (*in C.R.P.723/2025 IN C.A.561/2025*)

Haq Bahu Sugar Mills (Pvt.) Ltd, Lahore
(*in C.R.P.724/2025 IN C.A.562/2025*)

Macca Sugar Mills (Pvt.) Limited, Lahore
(*in C.R.P.725/2025 IN C.A.563/2025*)

Darya Khan Sugar Mills Ltd., Lahore
(*in C.R.P.726/2025 IN C.A.568/2025*)

Pattoki Sugar Mills Limited, Lahore
(*in C.R.P.727/2025 IN C.A.569/2025*)

...Respondent(s)

Shahtaj Sugar Mills Limited, Lahore
(*in C.R.P.728/2025 IN C.A.570/2025*)

For the Petitioner(s) : Ms. Asma Hamid, ASC (*in all cases*)

For Respondent(s) : Qazi Umair Ali, ASC (*in CRPs No.
669-690/2025*)

Mr. Shehzad Ata Elahi, ASC (*in
CRPs No. 691-693, 695-700, 702-705,
711, and 716/2025*)

Mr. Sikandar Bashir Mohmand,
ASC, assisted by Hamza Azmat
Khan, Advocate (*in CRPs No. 706-
707, 709, and 710/2025*)

Mr. Arshad Nazir, ASC (*in CRPs No.
708, 727, and 728/2025*)

Mr Shehryar Kasuri, ASC (*in CRPs No. 715, 719-721, 723-725, 726 and 727/2025*)

Mr. Ali Sibtain Fazli, ASC, and
Mr. Hasham Ahmed Khan, ASC
(*in CRPs No. 717 and 718/2025*)

Nemo (*in remaining cases*)

Date of Hearing : 15.01.2026

ORDER

SHAKEEL AHMAD, J.- These civil review petitions (except CRP No. 669 of 2025) are barred by 20 days. There are applications/CMAs for condonation of delay in filing the review petitions. In the interest of justice, we allow the CMAs for condonation of delay, filed in each petition (except CRP No. 669 of 2025), and condone the delay in filing these petitions.

2. The petitioner, through these petitions seek review of the judgment dated 18.09.2025 ("***the impugned judgment***") passed by a Bench of this Court comprising myself and Aamir Farooq, J. The controversy arises out of proceedings heard by an even-numbered Bench of the Competition Commission of Pakistan ("***the Commission***") consisting of four members, namely the Chairperson and three members. Upon conclusion of the proceedings, a split verdict emerged. By order dated 06.08.2021, the Chairperson, while concurring with one member, held the respondents guilty and imposed penalties. The remaining two members, by a separate order dated 12.08.2021, set aside the show-cause notice and remanded the matter for a *de novo* inquiry. Subsequently, the Chairperson, invoking Section 24 (5) of the Competition Act, 2010 ("***the Act***"), exercised a casting vote through an order dated 13.08.2021 with the view to resolving the deadlock. Aggrieved thereby, the respondents filed separate appeals before the Competition Appellate Tribunal, Islamabad ("***the Tribunal***"). The Tribunal, upon hearing the learned counsel for the parties, disposed of the appeals vide judgment dated 21.05.2025, in the following manner:

"After hearing the matter at length for the reason to be recorded subsequently, we are of the opinion that Chairperson had no right of casting a vote in quasi judicial

proceedings. Consequently, we set aside her opinion dated 13.08.2021 through which the right of casting vote was exercised and remand the matter to the Commission with the direction that either the Chairperson or any other member who is not signatory to either of the opinions to hear the appellants and to decide these matters preferably within a period of ninety days."

3. Dissatisfied, the respondents approached this Court through separate appeals, which were decided by the impugned judgment in the following terms:

"We conclude that the impugned judgment dated 21.05.2025, insofar as it rests upon the Chairperson's casting vote in adjudicatory proceedings, was rightly set aside by the Tribunal as violative of Article 10-A of the Constitution and to that extent warrants no interference. However, the portion of the impugned order directing that either the Chairperson or any other member not signatory to either of the opinions hear the appellants is set aside, and the matter is remanded to the Tribunal to decide the same afresh after affording a full right of audience to the learned counsel for the parties, within ninety days from the date of receipt of this order. These appeals are partly allowed in the above terms. In the circumstances of the case, there shall be no order as to costs.

4. Having heard learned counsel for the parties, the sole question that arises for our consideration is whether a review petition is maintainable on the plea that, owing to an alleged inadvertence, the matter was remanded to the Tribunal instead of the Commission on the premise of a purported consensus between the parties during arguments, which consensus is subsequently denied by the opposing party(ies).

5. The scope of review jurisdiction is well settled and extremely circumscribed, being confined to rectifying errors to avoid miscarriage of justice. However, a review petition is not to

be treated as an appeal in disguise, nor can it be invoked for rehearing or re-arguing the case on merits. Review is maintainable only in limited contingencies, namely where there exists an error apparent on the face of the record, where new and important evidence or law is discovered which was not within the knowledge of the parties despite due diligence, where the impugned judgment has been recorded without adverting to a relevant statutory provision or in departure from an undisputed construction of law, or where any other analogous and sufficient reason is made out. The aforesaid grounds have been elaborately expounded by this Court in a plethora of judgments, including in the case of *Board of Intermediate and Secondary Education, Lahore*¹.

6. We have examined the impugned judgment minutely, and it does not record or reflect the alleged consensus between the parties. For a review to succeed on such a ground, the order or judgment itself must disclose that the parties had consented and that a specific and agreed direction was recorded by the Court. Where the judgment is silent in this regard, subsequent oral assertions are irrelevant and cannot be accepted, for it is well settled that Courts speak through their written orders and judgments and not through alleged oral or verbal understandings attributed to the course of arguments. Once the opposite party(ies) categorically denies the existence of any consensus, the matter assumes the character of a disputed question of fact, which cannot be examined or resolved in review jurisdiction, as was held in the case of *Bostan*², nor can review be invoked to reconstruct what allegedly transpired during arguments.

7. It is equally settled by this Court in the case of *Lt.-Col. Nawabzada*³, that review does not lie merely because a conclusion is alleged to be erroneous, but only where something obvious has been overlooked, or an important aspect of the matter has escaped consideration. Likewise, in *Mian Rafiq*⁴, it

¹ *Board of Intermediate and Secondary Education, Lahore v. Bashir Ahmad Khan* (PLD 1997 SC 280)

² *Bostan v. Sahib Shah Ali & others* (PLD 1982 SC 102)

³ *Lt.Col. Nawabzada Muhammad Amir Khan v. The Controller of Estate Duty & Others* (PLD 1962 SC 335)

⁴ *Mian Rafiq Saigol & Another v. Bank of Credit and Commerce International (Overseas) Limited & Another* (PLD 1997 SC 865)

was held that where the Court has consciously and deliberately taken a view on a point of law or fact while deciding a petition or appeal, review cannot be sought on the ground that another view is possible. In the instant case, the impugned judgment specifically records that the case is remanded to the Tribunal, which constitutes a conscious judicial determination and not a clerical or typographical error. While correction of names, dates or figures may fall within the realm of clerical mistakes, the forum of remand is a substantive judicial decision and cannot be altered in review jurisdiction. Here, the alleged consensus is not reflected on record and is disputed by the opposing party(ies); consequently, the Court would have to inquire into what transpired during arguments. Such an inquiry would amount to re-opening of the factual matrix and cannot be treated as an error apparent on the face of the record. Therefore, the ground on which the review is sought falls outside the ambit of review jurisdiction.

8. For the foregoing reasons, we conclude that the instant review petitions are neither factually nor legally maintainable, as they are founded upon an alleged oral consensus which is neither reflected in the impugned judgment nor admitted by the opposing party(ies). Review jurisdiction cannot be invoked to settle disputed questions of fact or to alter a conscious judicial determination. Consequently, all these review petitions are dismissed. No order as to costs.

Islamabad:
15.01.2026
"Approved for reporting"
Zia/*Rameen Shahram LC